

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR C61
HON. JENNIFER M. MCCARTNEY

Date: 09/04/2026

Courtroom Rules and Notices

The Court will continue to upload tentative rulings as they are completed. Please be sure to keep checking until 8:30 AM on the day of your hearing.

Written responses, oppositions, or filings that are filed later than 12:15 PM the day before the hearing on the motion will go on second call by the Court for the Court to have an opportunity to review any last-minute filings. If a party files a written response, opposition, or any filing after 12:15 PM on the day before the hearing, the party must ensure they are available for the Court's afternoon calendar the day of the hearing.

Submitting on tentative rulings: If all counsel/parties intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5261 – both counsel need to state they are submitting on the tentative. Please do not call the Department unless all parties submit to the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling, and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

#	Case Name	Tentative
1	30-2026-01582469 The Regents for The University of California vs. Normoxi LLC	The Court has read and considered Judith Boston's Demurrer to Complaint (ROA 12), the Complaint (ROA 2) and the Plaintiff's Opposition (ROA 23). The Court takes Judicial Notice of the Request for Entry of Default (ROA 21). The California Supreme Court has held that, in the context of a residential tenancy, removal of an unnamed occupant from the premises without notice and an opportunity for a pre-eviction hearing violates the occupant's procedural due process rights under the Fourteenth Amendment to the United States Constitution and article I, section 7, subdivision (a) of the California Constitution. (<i>Arrieta v. Mahon</i> (1982) 31 Cal.3d 381, 389–393.) The Arrieta decision specifically addressed residential housing, reasoning that due process protections are implicated when an individual may be deprived of his or her home without notice and an opportunity to be heard. The Court finds that Judith Boston is not an unnamed occupant of the premises within the meaning of Code of Civil Procedure sections 415.46, 1174.25, or 1174.3, or as contemplated by <i>Arrieta v. Mahon, supra</i>, 31 Cal.3d 381. Boston is the founder of Normoxi, LLC, the defendant in this action, and signed the subject sublease in her capacity as the company's founder. Her

		status as the individual who executed the sublease on behalf of Normoxi does not, by itself, establish an independent, prejudgment claim to possession of the premises. Nor may Boston appear in propria persona to assert on behalf of Normoxi the company's contractual defenses to the unlawful detainer action. California law requires corporations, limited liability companies, and other artificial entities to appear in civil proceedings through licensed counsel. (See <i>Merco Constr. Engineers, Inc. v. Municipal Court</i> (1978) 21 Cal.3d 724; <i>Ziegler v. Nickel</i> (1998) 64 Cal.App.4th 545, 547–549.) Accordingly, Normoxi's rights and defenses under the subject sublease must be asserted through counsel authorized to represent the entity. As Plaintiff correctly observes, "Normoxi is a separate legal entity that must appear through licensed counsel, Boston cannot circumvent that requirement by adding herself individually as a defendant and then asserting Normoxi's contractual defenses in her own name." Accordingly, the Court orders the Prejudgment Claim to Right of Possession filed by Judith Boston STRICKEN. The Demurrer is ordered off calendar. Normoxi LLC's default was entered by the Court Clerk on 8/31/2026. The Court Clerk is ordered to provide notice of the Court's ruling.
2	30-2026-01589059 Prime/South Coast Holding, LLC vs. West	The Court has read and considered the Defendants' Demurrer to the Complaint for Unlawful Detainer (ROA 14), the Complaint (ROA 2) and the Plaintiff's Opposition (ROA 19). The Court OVERRULES the Demurrer. The Defendants are to file an Answer within 5 calendar days. Plaintiff is ordered to provide notice of the Court's ruling.
3	30-2026-01589203 Sequoia Equities - Hidden Hills vs. Gabroy	The Court has read and considered the Defendant's Demurrer to Complaint (ROA 16), Defendant's Request for Judicial Notice (ROA 19) and the Complaint (ROA 2). The Court DENIES the request for Judicial Notice as to Exhibits 1–3, as the documents are not proper items for judicial notice under Evidence Code section 452(h). California Rules of Court, Rule 3.1320 states "A party filing a demurrer must serve and file therewith a notice of hearing that must specify a hearing date in accordance with the provisions of Code of Civil Procedure section 1005 and, if service is by electronic means, in accordance with the requirements of Code of Civil Procedure section 1010.6(a)(4) and rule 2.251(h)(2)." Defendant failed to provide notice and service of the demurrer on the Plaintiff as required under the applicable Code of Civil Procedure and California Rules of Court. As this was not properly noticed and served, the Demurrer is taken off calendar.

		The Court Clerk is to provide notice.
4	30-2026-01590441 Nguyen vs. McIntosh	The Court has read and considered the Defendants' Demurrer to Amended Complaint (ROA 11) and the Amended Complaint (ROA 7). California Civil Code § 1954.535 provides that an owner must provide a tenant subject to an agreement or contract with a government agency with 90 days' written notice of the termination of the contract. This California Civil Code section does not exempt a landlord from the requirements under the Tenant Protection of 2019 if it applies to the tenancy, requiring notice under the just cause provision under Civil Code section 1946.2(b) or the California Code of Civil Procedure § 1161 requirements. The Plaintiff answered 7(b) in the Amended Complaint that the Tenant Protection Act of 2019 applies and that, under 8(a), the tenancy was terminated for at-fault just cause. The 90 Day Notice attached to the Amended Complaint does not meet the legal notice requirements for a just cause termination pursuant to Civil Code § 1946.2(b) or the California Code of Civil Procedure § 1161 requirements. A Notice to Quit cannot be amended. The Court of Appeal held that when a plaintiff fails to strictly comply with the requirement under California Code of Civil Procedure section 1161, a plaintiff fails to state a cause of action for unlawful detainer. (<i>Eshagian v. Cepeda</i> (2025) 112 Cal.App. 5th 433, 457-459.) The Court SUSTAINS the Demurrer without leave to amend. The Court dismisses the complaint with prejudice. The Court Clerk is to provide notice of the Court's ruling.
6	30-2026-01542413 Christopher Paul Teague as Trustee of the Teague Family Trust dated August 5, 2010 as restated on August 17, 2018 vs. Rutledge	The Court has read and considered the Defendant Stephanie Martin Rutledge's Notice of Motion to Set Aside the June 29, 2026 Default Money Judgment (ROA 70), Declaration in Support (ROA 73), and Reply to Motion (ROA 75). The Defendant failed to provide notice and service of the Motion pursuant to California Code of Civil Procedure § 1005 on the Plaintiff. No declaration of service or proof of service is attached to the Motion to Vacate, Declaration In support or Reply to Motion. The Court of Appeal held that a litigant in propria persona is subject to the same restrictive rules of procedure as an attorney. (<i>Kabbe v. Miller</i> (1990) 226 Cal.App. 3d 93, 98.) The Court takes the motion off calendar as it was not properly noticed or served. The Court Clerk is to provide notice of the Court's ruling.
7	30-2026-01577309 Yang vs. Byun	The Court has read and considered the Defendant's Motion for Summary Judgment (ROA 39). No Opposition was filed by the Plaintiff's counsel as of 5:36 AM on September 4, 2026.

		The Court GRANTS Defendant's Motion for Summary Judgment. On July 24, 2026, the Court ordered that Defendant's Motion to Deem Requests for Admissions, Set One, Admitted be granted and that the truth of the specified matters and the genuineness of the specified documents in Defendant's First Set of Requests for Admission, served on Plaintiff through counsel of record W. Scott Ayers on June 21, 2026, be deemed admitted. In light of those admissions, Plaintiff has failed to establish a triable issue of material fact or law. Defendant, in turn, has established the affirmative defense of retaliatory eviction. Accordingly, Defendant is entitled to judgment as a matter of law, and the Motion for Summary Judgment is GRANTED. Therefore, the Court finds judgment for the Defendant, Minji Byun, for possession of the property located at 20 Rushingwing, Irvine, CA 92614, County of Orange. The Defendant is the prevailing party, and Defendant's counsel may provide a motion and accounting to the Court requesting attorneys' fees and costs, which are not to exceed \$1000 per Section 37 of the Lease Agreement. Defendant's counsel is ordered to provide notice of the Court's ruling.
8	30-2026-01579273 Gelt Oasis Exchange, LLC vs. Clark	The Court has read and considered the Motion for Summary Judgment (ROA 89), Plaintiff's Opposition (ROA 135), and Defendant's Reply In Support of Motion for Summary Judgment (ROA 139). The Court DENIES the Motion for Summary Judgment. The Court finds that triable issues of material fact and law remain. Section D(4) of the Lease, under the heading "RENT," provides: "We reserve our rights under Civil Code § 1479 to apply any payments we receive to any amounts due (whether Rent, Charges, Late Charges or any other amount) in any manner we choose, and any contrary instructions or conditions you may attempt to impose will be of no force or effect." The parties have raised material factual and legal disputes concerning Plaintiff's application of payments received under the Lease. In particular, triable issues remain regarding how Plaintiff applied the payments, the order in which the payments were applied, and whether, following that application, any remaining balance constituted unpaid rent or other fees or charges. Defendant's Reply identifies seven (7) questions and contends that Plaintiff's Opposition does not adequately address them. The record before the Court likewise does not contain dispositive evidence resolving the material issues raised by the parties. For example, the Motion does not identify evidence, such as a party admission or deposition testimony, conclusively establishing how and when the charges were applied, how Defendant's rent payment was applied, or what actions were taken following the insufficient-funds issue.

		These unresolved matters present material factual disputes concerning the processing and application of payments under the Lease. Resolution of those factual issues requires consideration of the evidence and testimony concerning Plaintiff's processing and application of the payments and is appropriately determined by the trier of fact. Accordingly, because triable issues of material facts and law remain concerning the application of payments and the resulting balance, summary judgment is not warranted. All parties are ordered by this Court to report in person on Tuesday, 9/8/2026 at 9:00 AM to Department C33. Parties are ordered to comply with the instructions given in the 9/2/2026 Minute Order for the Jury Trial in front of Judge Leal.
9	30-2026-01578531 Sanderson J. Ray Apartments Property, LLC vs. Wright	The Court has read and considered the Motion for Stay of Execution of Judgment Pending Appeal by Randal H. Brown II (ROA 40). The Court takes Judicial Notice of the Complaint (ROA 2), Request for Entry of Default (ROA 21), 8/18/2026 Minute Order (ROA 30), Judgment-Unlawful Detainer (ROA 25), Writ of Possession (ROA 32), Ex Parte Application for Stay of Execution of Judgment Pending Appeal (ROA 35), and 8/21/2026 Minute Order (ROA 38). ROA 40 is the same request as ROA 35, except that Mr. Brown crossed out the "ex parte" language before resubmitting it as ROA 40. The Court has already ruled on the substance of the request in the Minute Order of 8/21/2026. As to ROA 40, Mr. Brown failed to provide notice and service of the Motions pursuant to California Code of Civil Procedure section 1005 on opposing counsel. No declaration of service or proof of service is attached. A person appearing in propria persona does not provide a basis for special treatment under the law; "such a party is to be treated like any other party and is entitled to the same but no greater consideration than other litigants and attorneys." (<i>Barton v. New United Motor Manufacturing, Inc.</i> (1996) 43 Cal.App. 4th 1200, 1210.) Additionally, the Court of Appeal held that a litigant in propria persona is subject to the same restrictive rules of procedure as an attorney. (<i>Kabbe v. Miller</i> (1990) 226 Cal.App. 3d 93, 98.) The Court DENIES Mr. Brown's Motion for Stay of Execution of Judgment Pending Appeal. The Court Clerk is to notify the Orange County Sheriff's Department to proceed with the lockout forthwith. The Court Clerk is to provide notice of the Court's ruling.

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